

HOUSE BILL 120

By Lamberth

AN ACT to amend Tennessee Code Annotated, Title 4 and
Title 39, relative to criminal offenses.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 39, Chapter 16, Part 5, is amended by
adding the following as a new section:

(a) As used in this section:

(1) "Division of protective services" means the division of the department
of safety established under § 4-3-2006, and includes any member of the
Tennessee highway patrol, commissioned member of the office of homeland
security, or other state or local law enforcement officer who is actively engaged in
supporting the division's operations; and

(2) "Person protected by the division of protective services" means any
person whom the division of protective services has been authorized by the
commissioner of safety to protect and is actively engaged in protecting under § 4-
3-2006.

(b)

(1) A person commits an offense who intentionally impedes or obstructs
a member of the division of protective services from ingress to, egress from, or
movement about a location where the member is responsible for a person
protected by the division of protective services.

(2) A person commits an offense who intentionally refuses to vacate an
area where access has been restricted by a member of the division of protective

services for the purpose of maintaining the safety or security of the person protected by the division of protective services.

(c)

(1)

(A) Except as provided in subdivision (c)(1)(B), a violation of subdivision (b)(1) is a Class A misdemeanor.

(B) A violation of subdivision (b)(1) is a Class E felony if the person who committed the offense was a threat to the safety or security of the person protected by the division of protective services.

(2) A violation of subdivision (b)(2) is a Class E felony.

SECTION 2. This act takes effect July 1, 2025, the public welfare requiring it.